

INVOICE

85 S. Pioneer Blvd, Springboro, OH 45066
TEL: 937-746-8575 FAX: 937-746-9872

SUNSTAR

Sunstar Engineering Americas Inc.

Sold To :

NIHON PLAST MEXICANA SA DE CV
AVENIDA LA CANADA NO.47
PARQUE BERNARDO QUINTANA
EL MARQUES, QUERETARO, MEXICO
CP 76246
TAX ID: NPM940304MC7

NPMX

Shipped To :

NIHON PLAST MEXICANA SA DE CV
VALVERDE FORWARDING CO INC
18713 WORLD TRADE CENTER LOOP
LAREDO, TX 78045
USA

Invoice Number	Invoice Date	Customer PO Number	Invoice Due	Payment Terms
138488	07/17/24	PO65816	08/16/24	Net 30 Days
Special Instructions	Ship Date	Shipping Instructions	Sales Order Number	Reference Invoice
145854	07/17/24	COL-CUSTOMER PICKUP	145854	

Item Number	Customer Item Number	Item Description	Ship Qty	UOM	Price Qty	UOM	Unit Price	Gross Amount
102000465	RAC60326	321 LH Pails	2.00	3PL	30.00	KG	\$ 13.930	\$ 417.90

THANK YOU FOR YOUR BUSINESS

Please Remit To:

Mizuho Bank (USA)
New York Branch
1251 Avenue of the America
New York, NY 10020 U.S.A.
ACCT: 10-757-004712
ABA: 026008905 (Check/ACH)
026004307 (Domestic Wire)
SWIFT: MHCBUS33 (Overseas Wire)
TAX ID: 22-276-0260

Send remittance detail to: char@sunstarea.com

Total Gross (Dollars)	:	\$ 417.90
Total Discount (Dollars)	:	\$ 0.00
Total Freight (Dollars)	:	\$ 0.00
Misc Charges (Dollars)	:	\$ 0.00
GST Tax (Dollars)	:	\$ 0.00
Total (Dollars)	:	\$ 417.90

PACKING SLIP

Sunstar Engineering Americas

85 S. Pioneer Blvd. Springboro, OH 45066
TEL: 937-746-8575 FAX: 937-746-9872

SUNSTAR

Shipped To:

NIHON PLAST MEXICANA SA DE CV
VALVERDE FORWARDING CO INC
18713 WORLD TRADE CENTER LOOP
LAREDO, TX 78045
USA

Sold To:

NIHON PLAST MEXICANA SA DE CV
AVENIDA LA CANADA NO.47
PARQUE BERNARDO QUINTANA
EL MARQUES, QUERETARO, MEXICO
CP 76246
TAX ID: NPM940304MC7

NPMX

Sales Order Number	Order Date	Ship Date	Exp Delivery Date	Invoice Terms
145854	07/10/2024	07/17/2024	07/24/2024	Net 30 Days
Customer PO Number		Shipping Instructions		Delivery Note Number
PO65816		COL-CUSTOMER PICKUP		145854/0003

Item Number	Customer Item Number	Item Description	Order Qty	UOM	Ship Qty	UOM	Net Weight (LB)
102000465	RAC60326	321 LH Pails Automotive Adhesive	30.00	KG	30.00	3PL	66.00
			Lot: 240608		2.00		

THANK YOU FOR YOUR BUSINESS

Authorized Signature

SHIP FROM:
Sunstar Engineering Americas, Inc.
700 Watkins Glen Drive
Franklin, OH 45005

ORDER ACKNOWLEDGEMENT

Sunstar Engineering Americas
85 S. Pioneer Blvd, Springboro, OH 45066
TEL: 937-746-8575 FAX: 937-746-9872

SUNSTAR

Shipped To:

NIHON PLAST MEXICANA SA DE CV
VALVERDE FORWARDING CO INC
18713 WORLD TRADE CENTER LOOP
LAREDO, TX 78045
USA

Sold To:

NIHON PLAST MEXICANA SA DE CV
AVENIDA LA CANADA NO.47
PARQUE BERNARDO QUINTANA
EL MARQUES, QUERETARO, MEXICO
CP 76246
TAX ID: NPM940304MC7

NPMX

Sales Order Number	Customer PO Number	Order Date	Ship Date	Request Date	Payment Terms
145854	PO65816	07/10/24	07/11/24	07/18/24	Net 30 Days
Shipping Instructions		Special Instructions		Customer Standard Comment	
COL-CUSTOMER PICKUP					

Item Number	Customer Item Number	Item Description	Order Qty	UOM	Ship Qty	Unit Price	UOM	Gross Amount
102000465	RAC60326	321 LH Pails	30.00	KG	0.00	\$ 13.930	KG	\$ 417.90

THANK YOU FOR YOUR BUSINESS

Notes:

Total Gross (Dollars)	:	\$ 417.90
Total Discount (Dollars)	:	\$ 0.00
Total Freight (Dollars)	:	\$ 0.00
Misc Charges (Dollars)	:	\$ 0.00
Total Tax (Dollars)	:	\$ 0.00
Total (Dollars)	:	\$ 417.90

CUSTOMS INVOICE

Sunstar Engineering Americas

85 S. Pioneer Blvd, Springboro, OH 45066

TEL: 937-746-8575 FAX: 937-746-9872

SUNSTAR

Vendor:

SUNSTAR ENGINEERING AMERICAS, INC
85 S. PIONEER BLVD.
SPRINGBORO, OH 45066
TAX ID: 22-2760260

Consignee:

NIHON PLAST MEXICANA SA DE CV
VALVERDE FORWARDING CO INC
18713 WORLD TRADE CENTER LOOP
LAREDO
TX
USA
78045

Sales Order Number	Order Date	Ship Date	Exp Delivery Date	Customer PO Number
145854	07/10/2024	07/17/2024	07/24/2024	PO65816
Invoice Terms		Shipping Instructions		
Net 30 Days		CUSTOMER PICKUP		

Item Number	Customer Item Number	Item Description	Country of Origin	Net Weight (LB)	Ship Qty	UOM	Price Qty	Price	UOM	Ext Amount
102000465	RAC60326	321 LH Pails	USA	66.00	30.00	KG	30.00	\$13.93	KG	\$417.90
Lot: 240608					2.00					

INVOICE FOR CUSTOMS PURPOSE ONLY - DO NOT PAY FROM THIS INVOICE

ULTIMATE CONSIGNEE

NIHON PLAST MEXICANA, S.A. DE C.V
AVENIDA LA CANADA NO. 47
PARQUE BERNARDO QUINTANA
EL MARQUES, QUERETARO, MEXICO
NPM940304MC7
76246

EXPORTER'S NAME AND ADDRESS
SUNSTAR ENGINEERING AMERICAS, INC.
85 S. Pioneer Blvd.
Springboro, OH 45066
USA

ORIGINATOR'S NAME AND ADDRESS
FOR:
SUNSTAR ENGINEERING AMERICAS, INC.
85 S. Pioneer Blvd.
Springboro, OH 45066
USA

PRE-STAGE

Sunstar Engineering Americas

85 S. Pioneer Blvd. Springboro, OH 45066
TEL: 937-746-8575 FAX: 937-746-9872

SUNSTAR

Customer:



SO Number:



Shipped To:

NIHON PLAST MEXICANA SA DE CV
VALVERDE FORWARDING CO INC
18713 WORLD TRADE CENTER LOOP
LAREDO, TX 78045
USA

NPMX

Sold To:

NIHON PLAST MEXICANA SA DE CV
AVENIDA LA CANADA NO.47
PARQUE BERNARDO QUINTANA
EL MARQUES, QUERETARO, MEXICO
CP 76246
TAX ID: NPM940304MC7

Sales Order Number	Order Date	Ship Date	Exp Delivery Date	Customer PO Number
145854	07/10/24	07/17/24	07/24/24	PO65816
Invoice Terms		Shipping Instructions	Special Instructions	
Net 30 Days		COL-CUSTOMER PICKUP		

Item Number	Customer Item Number	Item Description	Order Qty	Ship Qty	UOM	Net Weight (LB)
102000465	RAC60326	321 LH Pails	30.000	2.000	3PL	66
			Lot: 240608	2.000		

ALL SUNSTAR ENGINEERING AMERICAS MANUFACTURED MATERIAL MUST BE QC APPROVED
ALL LOTS, WEIGHTS AND CONTAINER NUMBERS MUST MATCH PRE-STAGE

☒ HEAT TREATED SKID

Who	What	Initials	Date
Operator	Check / Pre-stage	R	7-16
QC	SEA Mfg Approval		
Staff	Double Check		
Operator	Load	PL	7-16

1. **PURCHASE AND SALE.-** The Purchase Order herein (integrated by an obverse part and a reverse part, hereinafter referred to as the "Purchase Order"), duly signed by **NIHON PLAST MEXICANA, S.A. DE C.V.** (hereinafter referred to as "**NIPSA**"), and by the Supplier whose name is identified at the obverse part of the same (hereinafter referred to as the "**SUPPLIER**" and collectively with **NIPSA** as the "Parties"), both through his (their) legal representative(s), constitutes a Contract made and entered into by the Parties herein regarding the goods identified at the obverse part of this Instrument (hereinafter referred to as the "Products").

1.1 Both Parties mutually acknowledge themselves the personality with which they appear to execute this instrument.

1.2 The Purchase Order herein constitutes the general and sole agreement between the Parties upon the issues thereby established, and therefore no agreements or provisions different from the ones provided herein shall be valid, unless granted in writing and signed by the authorized legal representatives of both Parties. In the event of conflict regarding the terms and conditions contained herein or any further agreements signed by the Parties, the latter agreements shall prevail.

1.3 Acceptance of payment of Products without any expressed objection by **NIPSA** shall not constitute a recognition or acceptance of the terms and conditions established by **SUPPLIER**. **NIPSA's** terms and conditions should invariably be applied by **SUPPLIER** in accepting the Purchase Order, unless **NIPSA** grants its written acknowledgement to terms and conditions established by **SUPPLIER**.

1.4 Terms and conditions stipulated in this Clause constitute **NIPSA's** rejection regarding any sales conditions of **SUPPLIER** contained in writing that are different to what has been established in the Purchase Order herein.

2. **ABOUT THE PRODUCTS.-** **SUPPLIER** is bound to purchase the goods described at the obverse part herein in accordance with the terms and conditions established in the Purchase Order and, in its case, in the Supplier Releases (as defined in item 10.1 below).

3. **AMENDMENTS.-** Any amendments to be made to the Purchase Order should be in writing and signed by **NIPSA's** legal representative.

3.1 **NIPSA** shall be entitled, at any time, to make amendments to the Purchase Order herein, including but without limiting, the amount of Products, Point of Delivery, Product Specifications (as defined in Clause 6 herein), among others.

3.2 **NIPSA** shall send amendments to **SUPPLIER** by mail, facsimile or any other electronic means and **NIPSA** should confirm reception of the aforementioned amendments by **SUPPLIER**, in any way whatsoever. Said confirmation shall represent its acceptance of what has been established by the amendments.

3.3 If amendments to the Purchase Order herein arise any increase or reduction in **SUPPLIER's** price or in Product manufacturing or delivery times, an equal adjustment in delivery date and/or price shall be made, amending the Purchase Order herein in writing under the terms of this Clause. Anyhow, the adjustment to delivery date and/or price shall only be valid when **NIPSA** grants its previous and written consent.

4. **PRODUCT PRICE AND PAYMENT TERMS.-** Product price and payment terms are contained at the obverse part of the Purchase Order herein.

4.1 Prices contained in this Purchase Order constitute the total price of Product manufacturing and shall remain unchanged for as long as this Purchase Order is valid and **SUPPLIER** shall not be entitled to adjust them, except as provided in item 3.3 herein. **Prices shall be definite and will include any insurance, packing, transportation, shipping and assembling costs, tests, installations, training costs and any other costs generated by the purchase of Products. According to Incoterm.**

4.2 If Purchase Order specifies no prices, **SUPPLIER's** confirmation should specify them. In such case, **NIPSA** shall send its acceptance or oppose said prices in writing before delivery of Products by **SUPPLIER**. If **NIPSA** does not accept prices stipulated by

SUPPLIER in its confirmation, **NIPSA** shall be released from any responsibility whatsoever in the event of **SUPPLIER** delivering them.

4.3 Supplier may not demand payment of any additional amounts due to any concept, except **NIPSA** has previously authorized in writing, pursuant to what is established by item 3.3 in the Purchase Order herein.

4.4 **NIPSA** shall have the right to retain whatever amounts it owes to **SUPPLIER** in case the latter breaches any of its obligations, in accordance with what is established in the Purchase Order herein. Likewise, **NIPSA** may compensate any amounts it owes to **SUPPLIER** with whichever amounts **SUPPLIER** owes to **NIPSA**.

5. **TAXES, PENALTIES AND SANCTIONS.-** **SUPPLIER** assumes full responsibility regarding payment of local, state and federal taxes on sales, permits, obligations, encumbrances or similar taxes, as well as all the taxes on manufacturing, sale or delivery of any product (penalties and sanctions) and whichever other costs and taxes of any kind, including but without limiting, any tax or expense arising from this Purchase Order. According to Incoterm.

Likewise, **SUPPLIER** assumes full responsibility regarding payment of local, state and federal taxes on sales, permits, obligations, encumbrances or similar taxes, as well as all the taxes on manufacturing, sale or delivery of any product deriving from the Incoterm agreed upon among the parties.

6. **PRODUCT MANUFACTURING.-** **SUPPLIER** is bound to manufacture Products in accordance with Product Specifications, understanding by Product Specifications, any technical information, plans and instructions provided by **NIPSA** to **SUPPLIER**, in accordance with which the latter must manufacture Products.

6.1 Product Specifications may be established in this Purchase Order, or in separate documents.

6.2 **SUPPLIER** acknowledges that, previous to accepting terms contained in the Purchase Order, he has analyzed, checked and confirmed Product Specifications, and that such Specifications are sufficient and adequate to carry out a flawless Product manufacturing, including but without limiting, their amounts, manpower, materials and Product usage. Likewise, **SUPPLIER** guarantees that he is capable of manufacturing Products in strict compliance with Product Specifications, including but without limiting, manpower, materials and Product destination.

6.3 All raw materials and inputs used in the manufacturing of Products must comply with Product Specifications and **SUPPLIER** warrants that they will comply with Product Specifications. **NIPSA** shall be entitled to request **SUPPLIER** samples of raw materials that have been used by **SUPPLIER** or reports regarding product quality.

6.4 **NIPSA** shall be entitled to demand **SUPPLIER** to grant a deposit that guarantees fulfillment of all the obligations established in the Purchase Order herein, from a bondsman company authorized to operate in accordance with Mexican laws, in which case **NIPSA** shall not be bound to comply with its obligations regarding this document until said deposit has been granted.

7. **SUBCONTRACTORS.-** **SUPPLIER** shall not subcontract any third parties (hereinafter referred to as the "subcontractor") to manufacture products, without the previous written consent from **NIPSA**.

7.1 In the event that **NIPSA** authorizes **SUPPLIER** to use a Subcontractor for Product manufacturing, the following will rule:

7.1.1 Under no circumstance shall **SUPPLIER** be released from fulfilling each and every one of the obligations established in the Purchase Order herein. As a consequence, **NIPSA's** approval to use a Subcontractor shall not constitute in any way a delegation of **SUPPLIER's** obligations, in accordance with what is provided herein, to the Subcontractor authorized by **NIPSA**.

7.1.2 Notwithstanding what is pointed out in item 7.1.1., Subcontractor must bind in writing to comply with each and every one of the terms and conditions established in the Purchase Order herein, especially those regarding Product manufacturing, the term for Product manufacturing, prices, guarantees, among others. Equally, Subcontractor must accept in writing that under no circumstance it

shall be considered that said Subcontractor is entitled to any right before **NIPSA**.

7.1.3 **SUPPLIER** and Subcontractor acknowledge **NIPSA's** right to supervise at any time that Product manufacture by Subcontractor is conformant to what is established in the Purchase Order herein, and will therefore allow for **NIPSA's** access to facilities where Product manufacturing takes place.

7.1.4 **NIPSA** reserves the right to pay the Price and the partial payments made as part of the same directly to Subcontractor.

7.1.5 In the event that **NIPSA** so requires, **SUPPLIER**, or in the event that **NIPSA** pays the price of Products directly to Subcontractor, the latter, will be bound to issue Product invoices directly to **NIPSA**.

8. PRODUCT WARRANTY.- SUPPLIER shall be fully responsible for Product quality and adequacy and for Product Specifications, including but without limiting, any implicit usage warranty in accordance with its nature and destination.

8.1 **SUPPLIER** warrants Products shall comply with what is established in Product Specifications and shall be suitable for their use as auto parts for a period of 15 years, unless a different temporality is specified at the obverse part of the clauses herein. By virtue of the above, **SUPPLIER** shall be responsible for any damages and harm caused to **NIPSA** or its customers or to any third parties, for Product defects ("Product Warranty"), pursuant to Clause 12 herein.

8.2 The section and use of the quality management system that **SUPPLIER** will implement for Product manufacturing, shall be based upon the international ISO 9000 version 2000 and/or QS 9000 system quality standards, or under an equivalent quality system, which should be approved by **NIPSA**.

8.3 **NIPSA** is entitled to check **SUPPLIER's** quality systems and to evaluate product manufacturing by **SUPPLIER** at any time. In order to make any changes to quality management systems, **SUPPLIER** must have **NIPSA's** previous authorization in writing.

9. DEFECTIVE PRODUCTS.- SUPPLIER shall be the sole responsible party for any manufacturing defect or lack of adequacy to Product Specifications (either in hand labor or raw materials), including but without limiting, direct or indirect and or any consequential or incidental damages and harm caused to **NIPSA** or to any other third party pursuant to Clause 12 herein.

9.1 In the event that **NIPSA** determines that one or several Products are not conformant to Product Specifications or in general are defective, **NIPSA** shall be entitled to: (i) reject defective Products and return them to **SUPPLIER**; (ii) reject defective Products and demand from **SUPPLIER** the immediate repair of flaws at the expense of **SUPPLIER**, or (iii) carry out by itself or through any third parties, the necessary repair of defective Products at the expense of **SUPPLIER**.

9.2 In the event that **NIPSA** rejects Products pursuant to items (i) and (ii) of item 9.1 above, all the expenses related to Product return, as well as the risk of Products from the moment of their rejection shall be at the expense of **SUPPLIER**.

9.3 Notwithstanding what is specified in items 9.1 and 9.2 above, **NIPSA** shall be entitled to cancel the Purchase Order herein and claim payment of damages and harm pursuant to Clause 12 herein.

9.4 **NIPSA** may reject any Product that is not conformant to Product Warranty.

9.5 Regarding what is established in the Clause herein, Parties expressly waive what is provided in article 383 of the Code of Commerce.

10. PRODUCT DELIVERY.- SUPPLIER must deliver Products in the amount and at the address specified by **NIPSA** at the obverse part of the Purchase Order herein, unless **NIPSA** specifies in writing a different destination ("Point of Delivery") or a different amount to the one established in the Purchase Order herein.

10.1 **DELIVERY PROGRAMS.** (a) **SUPPLIER** is bound to deliver Products in accordance with requirements that **NIPSA** lets him know by means of documents called Delivery Programs (hereinafter

indistinctly either "Delivery Programs" or "Supplier Releases"), the above in the event that the Purchase Order herein does not specify delivery date or dates, the amounts and/or the Point of Delivery of Products.

(b) Supplier Releases shall specify the amount of Products, their date and the Point of Delivery.

(c) **NIPSA** shall send Supplier Releases to **SUPPLIER** by mail, facsimile or any other electronic means, and **NIPSA** shall confirm reception of said Supplier Releases by **SUPPLIER** in any way. Said confirmation shall represent his acceptance to what is provided in Supplier Releases.

10.2 **SUPPLIER** is bound to cooperate with **NIPSA** in preparing any documentation required and in accordance with the applicable law, so that **NIPSA** carries out product imports into the Mexican United States, and/or their exportation.

10.3 **NIPSA** may return Products delivered by **SUPPLIER** to the latter, when said delivery is made on a previous or later date than the date or dates established in the Purchase Order or Supplier Releases. Likewise, **NIPSA** may return any Products delivered in excess to the amounts specified in the Purchase Order or Supplier Releases. Based on the above, **SUPPLIER** shall assume the Product risks and shall be bound to reimburse **NIPSA** for any expenses the latter makes due to such return.

10.4 **NIPSA** is entitled to store Products that **SUPPLIER** delivers on a previous date(s) to the one(s) established in the Purchase Order or Supplier Releases, as well as to store any Product delivered in excess to the amounts specified in the Purchase Order or Supplier Releases at the Point of Delivery, the **SUPPLIER** being the one responsible for said storage expenses and assuming risks of loss of said Products.

10.5 **NIPSA** may accept partial or additional deliveries, but is not bound to do so. In the event that Parties agree upon partial deliveries, such partial deliveries must be specified in the Purchase Order or in the Supplier Releases.

10.6 Acceptance by **NIPSA** of partial deliveries that had not been originally agreed upon, or delay in delivery of all or part of Products, shall not constitute a waiver of **NIPSA's** rights to claim for damages or harm pursuant to Clause 12 herein.

11. PRODUCT PACKING, TRANSPORTATION, INSTALLATION AND RISK.- Products should be duly packed and added for their transportation and storage, in accordance with commercial standards or in its case, in accordance with authorized packages as required by **NIPSA**, and documents should also be attached as requested by **NIPSA** in the Purchase Order or Supplier Releases. Expenses incurred into due to packaging or transportation will be in charge of **SUPPLIER**, except as agreed upon in the Purchase Order. **SUPPLIER** shall be responsible for damages resulting in packaging of Products if what is provided in this Clause is not complied with.

11.1. **SUPPLIER** must deliver and/or install Products at the Point of Delivery, where they must be tested to ensure they comply with Product Specifications regarding: (a) That it works properly in every way; and (b) that they are suitable for their destination, use and purpose.

11.2. **SUPPLIER** assumes the risk in delivery and installation, including accidental loss and should maintain Products insured until: (a) products are delivered at the Point of Delivery, (b) Products are delivered or duly installed and in its case accepted by **NIPSA** after all the tests that the above paragraph refers to have been successfully completed, and (c) **NIPSA** provides an acknowledgement of receipt in writing to **SUPPLIER** and or his agent. The above, in accordance with the Incoterms negotiated and stated at the obverse part of the Purchase Order herein.

12. NONCOMPLIANCE .- Parties agree that in the event of noncompliance of any of the obligations contained in this Purchase Order by **SUPPLIER**, **NIPSA**, aside of what is provided in item 9.1, may at its choice:

a) Demand **SUPPLIER** the mandatory fulfillment of unfulfilled obligations;

b) Cancel this Instrument.

In both cases, it shall demand payment from **SUPPLIER** of direct and/or indirect damages that said noncompliance might have provoked to **NIPSA**.

12.1 **SUPPLIER** acknowledges and accepts that delivery of Products in accordance with the terms of the Purchase Order herein and the Supplier Releases is essential to **NIPSA**, given the fact that Products are inputs used by the latter for auto part manufacturing. By virtue of the above, **SUPPLIER** will be responsible for any damages and harm caused to **NIPSA** due to stops in production and due to any noncompliance of **SUPPLIER** to any of the obligations established in the Purchase Order herein and in its Supplier Releases.

12.2 **SUPPLIER** must immediately notify **NIPSA** in writing, in the event of being unable to comply with the delivery date or dates established. **SUPPLIER** must specify the reasons for said impossibility, the approximate duration of the delay and the measures he plans to take to correct the above.

12.3 Rights in this Clause are not considered exclusive, but will rather be cumulative and may be exerted at any time given the regularity and order desired by **NIPSA**.

13. **TERMINATION.**- Validity of the Purchase Order herein is established at the obverse of the same or at the Supplier Releases. In any case, **NIPSA** may terminate this Purchase Order in advance to its validity at any time and with no responsibility whatsoever on its part.

13.1 **NIPSA** reserves the right to cancel totally or partially and at any time this Purchase Order and the Supplier Releases, by means of a written notice to **SUPPLIER**, and the latter is bound to suspend the execution and manufacturing of Products and to cancel all the obligations it may have contracted regarding this Purchase Order and/or the Supplier Releases.

14. **FORCE MAJEURE.**- None of the parties shall be responsible for any noncompliance of the terms and conditions in the Purchase Order herein provided that said noncompliance is caused directly or indirectly by fortuitous case, force majeure or changes to the law which avoid fulfillment of obligations established in the Purchase Order herein.

14.1 **SUPPLIER** must notify **NIPSA** of danger existing in the event of imminent noncompliance of any of the events stated in this Clause 14 and must prove that said event was the decisive cause for not fulfilling its obligations.

14.2 Once any of the events in item 14.1 have been updated, **SUPPLIER** may immediately notify **NIPSA** in writing, describing the corresponding event and the amount of time that **SUPPLIER** considers his capacity to comply with the obligations will remain affected. **SUPPLIER** must make its largest effort in order to remedy, to the extent possible, the consequences provoked by said event and to restart fulfilling the obligations contained in the Purchase Order herein, on the third working day after the one in which he is able to comply with his obligations, as the latest.

15. **INDUSTRIAL PROPERTY LAWS.**- **SUPPLIER** declares that: (a) There are no judicial or extrajudicial procedures regarding any trademark, patent or copyright that might affect Products (hereinafter collectively referred to as "Industrial Property"); (b) **SUPPLIER** owns the Industrial Property deriving from products or has the authority and/or rights to use it; and (c) the manufacturing, delivery or usage of Products constitutes no violation to Industrial Property, Industrial Property Law and/or any other applicable legislation.

15.1 **SUPPLIER** is bound to defend **NIPSA**, its successors, assignees and third parties, against any judicial action resulting directly or indirectly in a violation, claim of third party's rights regarding Industrial Property and will indemnify **NIPSA**, its successors, assignees and third parties for any damages or harm, loss or expenses (including legal obligations), that they might suffer as a result of any claim filed by third Parties.

16. **INVOICES AND PAYMENTS.**- Every invoice should be issued in accordance with the applicable law and must contain the complete number of this Purchase Order, the price and currency in which each Product is to be paid and a detailed list of Products delivered, in accordance with what is provided in the Purchase Order herein and/or the Supplier Releases.

16.1 **NIPSA** shall have the right to reject Products if invoice is not issued in accordance with specifications mentioned in this Clause. Payment

shall be made once Products have been received in accordance with what is provided by the Purchase Order and payment of invoice will be made on the thirtieth day after reception of said invoice or the following working day in the event of its being a non-working day (hereinafter, the "Date of Payment").

16.2 **NIPSA** shall be entitled to carry out payment to **SUPPLIER** in any date previous to the Date of Payment, in which case the Purchase Price shall be reduced on the amount or rate mutually agreed by the Parties.

17. **PUBLICITY AND CONFIDENTIALITY.**- **SUPPLIER** shall not be entitled to use or mention **NIPSA's** name or any of **NIPSA's** trademarks in any mass communication, advertisements or any other document of similar nature to be sent to public in general, without the previous consent, through specified authorization and in writing from **NIPSA**.

17.1 **SUPPLIER** shall not reveal any commercial and/or technical information, including the time after the term of validity of this Instrument. **SUPPLIER** shall take charge of every reasonable actions permitted by the laws in the Mexican United States in order to prohibit and prevent its officers, stockholders/directors, employees, workers, agents and subcontractors, to use, disclose, publish or reveal the aforementioned information property of **NIPSA**, being in its case responsible for any damages or harm and for any civil and criminal actions corresponding to the use of such information.

17.2 **NIPSA** is authorized to request tests from **SUPPLIER** regarding compliance with what has been established in item 17.1. **SUPPLIER** may only copy the information provided by **NIPSA** to the extent in which it is necessary for business purposes, with the limits established herein, in the Industrial Property Law and other applicable legislation.

18. **APPLICABLE LAW AND JURISDICTION.**- For everything regarding interpretation and compliance with the Purchase Order herein, Parties submit themselves to the laws of the Mexican United States, submitting to the jurisdiction of the Courts of Mexico City, Federal District, waving any other jurisdiction that might correspond to them by virtue of their present or future addresses.

19. **NOTICES.**- Any notice that Parties require to make, should be in writing and delivered by mail or personally at the address stipulated at the obverse of the Purchase Order for **SUPPLIER** and at **NIPSA's** address, located at Av. La Cañada No. 47, Col. Parque Industrial Bernardo Quintana, C.P. 76246, el Marquez, Estado de Queretaro, Mexico, addressed to the attention of the Purchasing Department.

20. **INTEGRITY AND SEVERALTY.**- If any term or condition in this Purchase Order is declared null or invalid, said provision or term shall be considered without effect, while the remaining provisions in this Purchase Order will continue in full legal force and effect, and should be construed as if the provisions declared null or invalid would not have been included.

21. **WAIVER.**- Any waiver on **NIPSA's** part regarding any violation or noncompliance from **SUPPLIER** with respect to any of the obligations established herein to be at his charge, and any omission from **NIPSA** to enforce its rights, shall not represent a waiver of **NIPSA** to enforce them at any other time.

22. **TITLES.**- Titles used at the beginning of each Clause solely constitute a reference to the Clauses and shall not affect their construction, content or interpretation.



NIHON PLAST MEXICANA, S.A. DE C.V.

Page 1 of 1

FO-C10-013

Rev: 7.0

AV LA CAÑADA No. 47 PARQUE INDUSTRIAL BERNARDO QUINTANA
EL MARQUES, QUERETARO, C.P. 76246 TELS: (442) 296-10-00 RFC: NPM940304MC7

Orden Compra PO65816	Proveedor D1131D	Cobr-A NIPSA	Emb-A 1000	Revisión Orden 0.00	Fecha de Orden 03/05/2024	Impr Fecha 10/07/2024	Fecha entrega 05/08/2024
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Proveedor			Emb-A				
SUNSTAR ENGINEERING AMERICAS INC. 85 S. PIONEER BLVD. SPRINGBORO, OH 45066 United States			NIHON PLAST MEXICANA S.A DE C.V AV. LA CAÑADA N.47 PARQUE INDUSTRIAL BERNARDO QUINTANA EL MARQUES 76246 QUERETARO, QRO MEXICO				
Comprador Solicitado X	MARIA DOLORES ESPINOZA Maria Guadalupe Lira Resendiz	despinoz mlira	Atención				
Térms Créd Moneda CFDI Use:	PROV 30 DIAS REV FACT USD G01	P30REVF	Entrega Incoterms DAP Tipo Closed/Cerrada				
Observs			COMPRA DE MATERIALES EVENTO QC				

Lín OC	RAC	Numero articulo	Descripción	Cnt Ordend	UM	Prec Unitario	Total
1	RAC60326	.Adhesive 321LH	Adhesive 321LH	30.00	kg	13.9300	417.90

SOLICITA: MAXIMILIANO GARCIA / ELABORA: GUADALUPE LIRA OBJETIVO: COMPRA DE ADHESIVO PARA EVENTO QC DEL MODELO 3BHA ENTREGAR EN: PLANTA 1 AV. LA CAÑADA # 47 PARQUE INDUSTRIAL BERNARDO QUINTANA

Subtotal	417.90
iva IVA	0.00
Total Monto	417.90



MARIA DOLORES ESPINOZA
CORONA
COMPRADOR



M.ROSALIO
SUBGTE ABASTECIMIENTOS



R.UMEBORI
SUBGTE ABASTECIMIENTOS



K.SUZUKI
GTE FINANZAS

NOMBRE, FIRMA Y FECHA
Proveedor



3901 WEST BROAD STREET
RICHMOND, VA 23230

BILL OF LADING

SHIPPER

SUNSTAR ENGINEERING AMERICAS
SHIPPING
700 WATKINS GLEN DRIVE
FRANKLIN, OH, 45005, US
Contact: SUSAN WENGER; (837) 743-9049; SEA.ChemicalDivision-
Shipping@us.sunstar.com

CONSIGNEE

VALVERDE FORWARDING
RECEIVING
18713 World Trade Center Loop
LAREDO, TX, 78045, US
Contact: NIHON SHIPMENT; (956) 726-4476;

BILL TO

RACING CARGO USA INC
4307 PAN AMERICAN BLVD
LAREDO, TX, 780457927, US
Contact: REGINA WILLIAMSON; (877) 827-7813;

ACCT #: 6882293



PRO# 067-8145125



Date: 07/16/2024
MASTER BOL : SHPUS-DI23900
BOL(s):
SHIPMENT ID :
PO#: NP010083

QUOTE #: LGQ8G9W

Billing Terms: ☒ PREPAID

SPECIAL INSTRUCTIONS: HAZARDOUS MATERIALS CHARGE

Hazardous Material Emergency Contact: CHEMTREC; (800) 424-9300

*Mark with 'X' in HM if appropriate to designate Hazardous Materials or Hazardous Substances and defined in the Department of Transportation Regulations governing the transportation of hazardous materials.

NOTE: Liability Limitation for loss or damage on this shipment may be applicable. See 49 U.S.C. 14706 (c)(1)(A) and (B).

Handling Unit		Package		HM	Commodity Description	Weight lbs	Freight Class	NMFC #	Dimensions			Stack-able
Type	QTY	Type	QTY						L	W	H	
PALLETS	4	BUCKETS	147	X	UN1133 Adhesives, 3, PGII, Flammable, Liquid	5,726	85	44155-02	48	48	31	N
					For Chemical Emergency Spill, Leak, Fire Exposure or Accident CHEMTREC 800-424-9300 HM Company ID: 026121							
Total H/U	4	Package	147		Total Shipment Weight	5,726	Density	34.6 PCF	Cube 165.3 FT ³			

Full Value Coverage Declared or Released Value | WARNING: Additional and/or maximum liability limitations or other restrictions may apply. Refer to Estes Rules Tariff EXLA 105 for further details, including provisions in item 350. The shipper may request "Full Value Coverage" as provided for in item 350, Section 3, by indicating here the value of the entire shipment. The shipper hereby declares that the value of this shipment does not exceed \$_____. If no value is entered, the lowest applicable released value will be applied for this shipment. Full Value Coverage only applies subject Full Value Coverage charges have been paid in full.

RECEIVED, subject to individually determined rates of contracts that have been agreed upon in writing between the carrier and the shipper, if applicable, otherwise the rates, classifications, and rules (See Estes Rules Tariff EXLA 105) that have been established by the carrier and are available to the shipper, on request; The property described above, in apparent good order, except as noted (contents and conditions of contents of packages unknown) marked, consigned, and destined as shown above which said carrier agrees to carry to destination, if on its route, otherwise to deliver to another carrier on the route to destination. It is mutually agreed, as to each carrier of all or any said property over all or any portion of said route to destination and as to each party at any time interested in all of any said property, that every service to be performed thereunder shall be subject to all the terms and conditions of the Uniform Bill of Lading set forth in the National Motor Freight Classification 100-X and successive issues. Note: It is also agreed that the carrier will not be liable for any consequential damages arising from the delay of delivery and carrier makes no guarantees concerning the delivery dates or times (Subject to terms and conditions of any applicable Guaranteed Service Agreement).

SHIPPER CERTIFICATION

Shipper certifies by its signature, its agreement to all the foregoing terms and conditions, and further certifies that the above named materials are properly classified, describe, packaged, marked and labeled, and are in proper condition for transportation according to the applicable regulations of the DOT

Shipper

Authorized Signature
M. S. Williams

Date 7/17/24

CARRIER CERTIFICATION

Carrier acknowledges receipt of packages and required placards. Carrier certifies emergency response information was made available and/or carrier has the DOT emergency response guidebook or equivalent document in the vehicle.

ESTES Express Lines-EXLA

Authorized Signature
[Signature]

Date 7/17/24

_____ PLTS STC / _____ PC and _____ LOOSE

RUN #	TIME ARRIVED	TIME DEPARTED	DRIVER #	# OF PALLETS	CUBIC FEET



Ship Conf#: 0000000001993087